

24NWCV00964 24NWCV00964

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Division: Civil Law and Motion

Department: L

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Case Number: 24NWCV00964 Hearing Date: August 27, 2026 Dept: L

Attorney Daniel

Gopstein, Esq.'s Motion to be Relieved as Counsel is CONTINUED to September 17, 2026 at 9:30 a.m. in Dept. L.

Counsel to give
notice.

Background

This is lemon law action. Attorney Daniel Gopstein, Esq., counsel for Plaintiff Beatriz Alvarez and Daniel Alvarez, now moves to be relieved as counsel.

The Motion is unopposed as of August 26, 2026.

Legal Standard

Good cause exists to grant a motion to be relieved as counsel based on any of the grounds under California Rules of Professional Conduct Rule 1.16(b). Rule 1.16(b) provides that an attorney may withdraw based on any of the following: (1) the client insists upon presenting a claim or defense that is not warranted under existing law and cannot be supported by good faith argument for an extension, modification, or reversal of existing law, (2) the client seeks to pursue a criminal or fraudulent course of conduct, (3) the client insists that the lawyer pursue a course of conduct that is criminal or fraudulent, (4) the client by other conduct renders it unreasonably difficult for the member to carry out the representation effectively, (5) the client breaches a material term of an agreement with, or obligation, to the lawyer relating to the representation, and the lawyer has given the client a

reasonable warning after the breach that the lawyer will withdraw unless the client fulfills the agreement or performs the obligation, (6) the client knowingly and freely assents to termination of the representation, (7) the inability to work with co-counsel indicates that the best interests of the client likely will be served by withdrawal, (8) the lawyer's mental or physical condition renders it difficult for the lawyer to carry out the representation effectively, (9) a continuation of the representation is likely to result in a violation of these rules or the State Bar Act, or (10) the lawyer believes in good faith, in a proceeding pending before a tribunal, that the tribunal will find the existence of other good cause for withdrawal.

California Rules of Court, Rule 3.1362 requires that the following be submitted in support of an attorney's motion to be relieved as counsel pursuant Code of Civil Procedure section 284, subdivision (2): (1) a notice of motion and motion directed to the client (made on Notice of Motion and Motion to Be Relieved as Counsel—Civil (Judicial Council Form, MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284, subdivision (2) is brought instead of filing a consent under Code of Civil Procedure section 284, subdivision (1) (made on Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil (Judicial Council Form, MC-052)); (3) a proof of service evidencing service of the notice of motion and motion, declaration, and proposed order on the client and on all other parties who have appeared in the case; and (4) a proposed order relieving counsel (prepared on Order Granting Attorney's Motion to Be Relieved as Counsel—Civil (Judicial Council Form, MC-053)). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (d), (e).)

The court has discretion to allow an attorney to withdraw, provided that there is no prejudice to the client. (*Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915.)

Discussion

Attorney Daniel

Gopstein, Esq ("Counsel") filed a Notice of Motion and Motion to be Relieved as Counsel. (See Form MC-051.) Counsel also filed a proposed order. (See Form MC-053.) Counsel's declaration demonstrates good cause for withdrawal based on a breakdown in communication with the clients, stating the following:

“Since January 26, 2026, our office has been attempting to contact Plaintiffs via phone calls, and conducted a skip trace in an effort to contact Plaintiffs through alternative means. On January 28, 2026, we received possible phone numbers and an alternative address for Plaintiffs. On March 19, 2026, our office arranged for a field agent to visit Plaintiffs' alleged residence and to request contact with our office to no avail. On June 8, 2026, our office conducted another skip trace to deliver correspondence letters in an effort to contact Plaintiffs. The correspondence letters were delivered to both Plaintiffs and our office has been attempting to make contact, however, Plaintiffs remain unreachable and non-responsive.”

(Gopstein Decl., ¶ 2.)

Counsel states that the client was served copies of the Motion papers by mail at the client's last known address, which was confirmed via third-party vendor skip trace, in the past thirty (30) days. (Gopstein Decl., ¶ 3(b).) Counsel states that, even if he has been unable to serve the client with the moving papers, the Court should grant attorney's motion to be relieved as counsel of record because “[t]he attorney-client relationship has irreparably broken down and the representation of the client has been rendered as unreasonably difficult.” (Gopstein Decl., ¶ 3(c).)

Counsel has filed a Proof of Service indicating that the client has been served the Motion papers via mail.

However, the Proof of Service does not indicate that Defendant American Honda Motor Co., Inc. has been served the Motion papers. California Rules of Court, rule 3.1362(d) states the following: “The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case.”

Accordingly, the hearing on the Motion to be Relieved as Counsel is CONTINUED to September 17, 2026 at 9:30 a.m. in Dept. L.

Counsel is to file Proofs of Service indicating that 1) Defendant American Honda Motor Co., Inc. has been served the Motion papers, and 2) Defendant and the clients have notice of the continued hearing date.